

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DELANO O. ESANNASON,

Index No.: 155355/2016

Plaintiff,

-against

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KRISTEN
SWINKUNAS, JOHN AND JANE DOES, said names
being fictitious and intended to represent individual
officers of the New York City Police Department,

Defendants.
-----X

**AFFIRMATION IN
SUPPORT OF
MOTION TO AMEND
THE PLEADINGS AND
CAPTION**

EXHIBIT 8

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DELANO O. ESANNASON,

Index No.: 155355/2016

Plaintiff,

-against-

THE CITY OF NEW YORK, , POLICE OFFICER
KRISTEN SWINKUNAS, individually and in her
capacity as a member of the New York City Police
Department, POLICE OFFICER JAYSON BASNIGHT,
individually and in his capacity
as a member of the New York City Police Department,
POLICE OFFICER DANIEL MILLER, individually and
in his capacity as a member of the New York City Police
Department, SGT "JOHN" MARTINEZ, individually and
in his capacity as a member of the New York City Police
Department, JOHN AND JANE DOES,
said names being fictitious and intended to represent
individual officers of the New York City Police
Department,

**VERIFIED AMENDED
COMPLAINT**Defendants.
-----X

Filed on: _____

Plaintiff DELANO O. ESANNASON ("Mr. Esannason" or "Plaintiff"), by and through
his counsel, as and for his Verified Amended Complaint against Defendants, respectfully sets
forth and alleges that:

NATURE OF THE CLAIMS

1. This is a civil action for compensatory, injunctive, punitive, and exemplary
damages for the wrongful arrest, negligence, recklessness and carelessness of the Defendants,
which caused the Plaintiff to suffer serious injury.

2. This action is to redress the deprivation under the color of statute, ordinance,
regulation, custom or usage of a right, privilege and immunity secured to the Plaintiff by the
United States Constitution, particularly, 4th, 5th and 14th Amendments, 42 U.S.C. Sections 1983,
1985, 1986, and 1988, Monell, and the laws and statutes of New York State.

3. This case arises out of an incident occurring on or about June 5, 2015.

4. Defendants' conduct was knowing, malicious, wanton and in reckless disregard of the Plaintiff's rights. It has caused and continues to cause the Plaintiff to suffer substantial economic and non-economic harm, severe mental anguish and emotional distress.

JURISDICTION & VENUE

5. This Court has jurisdiction over this matter because this case arises out of an incident that occurred in New York County.

6. Venue is proper in this district pursuant to CPLR § 504 because the cause of actions arose in New York County.

PARTIES

7. Plaintiff Delano O. Esannason is and was at the time of the occurrence a New York State resident residing in New York County.

8. Defendant City of New York is a municipal corporation duly existing under and by virtue of the laws of the State of New York and maintains its principal place of business at 100 Church Street, New York, New York 10007. As part of its function, the City of New York operates the New York City Police Department ("NYPD"). In this capacity, its employees were involved in the incident at issue and are named in this Complaint.

9. At all relevant times, Defendant P.O. Kristen Swinkunas was a police officer of the NYPD and representative of the City of New York, and she directly participated in the unlawful activity that is the subject of this Complaint.

10. At all relevant times, Defendant P.O. Jayson Basnight was a police officer of the NYPD and representative of the City of New York, and he directly participated in the unlawful activity that is the subject of this Complaint.

11. At all relevant times, Defendant P.O. Daniel Miller was a police officer of the NYPD and representative of the City of New York, and he directly participated in the unlawful activity that is the subject of this Complaint.

12. At all relevant times, Defendant Sgt. "John" Martinez was a sergeant of the NYPD and representative of the City of New York, and he directly participated in the unlawful activity that is the subject of this Complaint.

13. At all relevant times, Defendants "JOHN DOES" were police officers of the NYPD and representatives of the City of New York, and they directly participated in the unlawful activity that is the subject of this Complaint.

14. At all relevant times, Defendants "JANE DOES" were police officers of the NYPD and representatives of the City of New York, and they directly participated in the unlawful activity that is the subject of this Complaint.

PROCEDURAL REQUIREMENTS

15. Plaintiff filed a Notice of Claim against the City of New York and the NYPD on March 30, 2016, pursuant to a Decision and Order of the Hon. Margaret A. Chan, dated March 30, 2016.

16. An oral examination of the Plaintiff was held on May 13, 2016 in compliance with Section 50-H of the General Municipal Law.

17. A subsequent notice of claim for malicious prosecution was timely filed on February 25, 2016 after the Plaintiff's criminal charges were dismissed on the merits.

18. All conditions and requirements precedent to the commencement of this action have been complied with.

FACTUAL ALLEGATIONS

19. On or about June 5, 2015 at approximately 6:30 PM, the Plaintiff was sitting in his lawfully parked vehicle outside of 210 West 148th Street, New York, New York.

20. While the Plaintiff was sitting inside his vehicle waiting to pick up his son, Defendants P.O. Kristen Swinkunas, P.O. Jayson Basnight and P.O. Daniel Miller approached the Plaintiff and asked for his registration and license, which he gave to them. He was further ordered to exit his vehicle with his hands raised.

21. The Plaintiff complied with the Defendants' order and inquired as to why the Defendants have directed him to exit his vehicle.

22. Defendants P.O. Kristen Swinkunas, P.O. Jayson Basnight and P.O. Daniel Miller, questioned the Plaintiff about the sale of his vehicle, and without just or probable cause, accused the Plaintiff of criminal possession of a forged instrument.

23. Even though Plaintiff provided proof from the car dealer that the sale and the license plate displayed on his vehicle were legitimate, the Defendant P.O. Kristen Swinkunas, along with Defendants Miller and Basnight, handcuffed and arrested the Plaintiff. In addition, after seeing the Plaintiff's registration documents, Defendant P.O. Jayson Basnight taunted the Plaintiff and told him that if he cannot afford to register his car, then he should not have a car.

24. The Plaintiff was held in police custody for 24 hours despite the fact that the police did not have probable cause to do so.

25. While in custody, the Plaintiff was taunted and harassed by members of the NYPD, including P.O. Basnight.

26. In addition, the Plaintiff was questioned by Defendant "John" Martinez on whether or not he had any knowledge of drug and gun activity in the neighborhood. Despite

explaining to Defendant Martinez that he had no such knowledge of any criminal wrongdoing, Defendant Martinez continued to press the Plaintiff and told him that if he shared his knowledge of what was going on in the neighborhood, he could help him out of his current situation. Since the Plaintiff did not have any knowledge, the Defendants continued to process the Plaintiff.

27. While at the Precinct, Defendant P.O. Swinkunas completed a sham investigation and despite not having probable cause, reported her findings to Defendant P.O. Miller. In order to defend against the unlawful detention of the Plaintiff, Defendants Miller and Swinkunas arrested the Plaintiff. Defendants Basnight and Swinkunas transported the Plaintiff to Central Booking.

28. After being released from police custody, the Plaintiff, along with the individual who sold him the vehicle, went to the Precinct to furnish further proof verifying the authenticity of the Plaintiff's temporary license tags in light of the pending charges against him. Instead of assisting, Defendant Basnight dismissed them and threatened the individual who sold the Plaintiff the vehicle.

29. Plaintiff was forced to appear in court numerous times over several months to dispute the bogus charges brought against him.

30. Finally, on January 28, 2016, the case against the Plaintiff was dismissed on the merits.

31. Plaintiff was caused to suffer severe, physical, psychological and emotional harm.

32. Defendant City of New York's NYPD had a policy, practice and/or procedure of inadequately training, supervising and monitoring their agents, servants, police officers, sergeants, detectives, lieutenants, captains and/or employees regarding the proper basis for arrests, arrest procedures, justification for arrests, and/or handling arrested individuals with the

proper care and safety to protect them from unnecessary harm. This policy was in reckless disregard to the rights of citizens, like the Plaintiff, who was not involved in any criminal wrongdoing.

33. Defendant City of New York's NYPD breached its duty to ensure that the actions, activities, and behavior of its said servants, agents, sergeants, detectives, lieutenants, captains and/or employees conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk and harm, and that they do not conduct themselves in a manner that would intentionally, wantonly, and/or negligently cause injuries to others, including the Plaintiff herein.

34. Defendant City of New York's NYPD had a duty to sufficiently screen for hiring, train and supervise, at the command, precinct and patrol levels, its servants, agents, police officers, detectives, employees, and/or personnel so as to ensure the safety, protection, security and well-being of persons who were in the presence, proximity, custody and/or control of the NYPD, officers, detectives, sergeants, lieutenants and/or personnel.

35. As a result of Defendant City of New York's NYPD's failure to properly hire, train, and supervise their employees, Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, Sgt. Martinez, and "John and Jane Does" were able to act in reckless disregard to the rights of the Plaintiff by abusing their role as a police officer by wrongfully arresting, acting in a reckless and careless manner with regard to the Plaintiff's Constitutional rights.

36. Furthermore, Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, Sgt. Martinez, and "John and Jane Does" had a duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm, as well as to conduct themselves in a manner that

would not intentionally, wantonly, and/or negligently cause injuries to others, including the Plaintiff herein.

FIRST CAUSE OF ACTION
(42 U.S.C. §1983)

37. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 36, inclusive, as if fully set forth herein.

38. The Defendants violated their duty to provide and/or ensure the safety, protection and well-being of the Plaintiff who was in the presence, custody and/or control of its personnel.

39. Defendant City of New York's NYPD had a duty to ensure the actions, activities, and behavior of its said servants, employees, personnel, and/or police officers allowed for the safety of New York citizens. By not doing so, the Defendant City of New York through its employees, Defendant P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," while acting in concert, violated the Plaintiff's rights under the United State Constitution, particularly the 4th, 5th, and 14th Amendments, 42 U.S.C. § § 1983, 1985, 1986 and 1988, and the laws and statutes of New York, by effecting an unlawful arrest and maliciously prosecuting the Plaintiff herein to cover up the wrongful arrest.

40. At all relevant times, Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," were representatives of the Defendant City of New York and employees of Defendant NYPD. Thus, Defendant City of New York's NYPD had a duty to ensure that the actions, activities and behavior of Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm, and not in a manner so as to not intentionally wantonly and/or negligently do harm to others, including Plaintiff Delano Esannason.

41. Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," were in the course and scope of their employment as police officers and representatives for the Defendant City of New York's when they violated the Constitutional Rights of Plaintiff Delano Esannason to be safe and secure in his person guaranteed to him by the 4th, 5th and 14th Amendments, including, but not limited to his right to be free from unlawful arrest and malicious prosecution.

42. As a result of the Defendants' actions, Plaintiff suffered mental anguish and emotional upset, some of which are permanent in nature and duration.

43. The resulting injuries sustained by Plaintiff were caused solely by the Defendants, in violation of Plaintiff's Civil and Constitutional rights, and without any cause, provocation, or negligence on the part of Plaintiff contributing thereto.

SECOND CAUSE OF ACTION
(Monell under 42 U.S.C. § 1983)

44. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 43, inclusive, as if fully set forth herein.

45. At all relevant times, the Defendant City of New York had a duty to screen applicants for hire, retention or discharge with the NYPD those employees who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological, racist, biased and/or physiological traits or characteristics unsuitable, unstable or contraindicated for such employment.

46. At all relevant times, it was the duty of the Defendant City of New York to sufficiently hire, train, retain personnel within the NYPD's Police Academy and at the

Command, Precinct and Patrol levels so as to sufficiently discipline, supervise, promulgate, and put into effect appropriate rules applicable duties, behavior and activities of their servants, agents, police officers, employees and/or personnel.

47. Upon information and belief, the individually-named Defendants were improperly trained, supervised and retained in violation of the standards set out by the Monell doctrine.

48. Defendant City of New York's NYPD's policies, customs and/or practices allowed Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," to deprive the Plaintiff of his rights under both Federal and State law resulting in him suffering emotional distress in an effort to conceal their wrongdoing of falsely arresting and maliciously prosecuting the Plaintiff.

49. Moreover, upon information and belief, the individually-named Defendants had exhibited dishonesty in making arrests to justify illegal conduct and violated the Constitutional rights of others prior to their unconstitutional conduct herein.

50. Defendant City of New York was aware of these propensities and did nothing to remedy it. This failure was in deliberate indifference to citizens like the Plaintiff herein.

51. As a result of the foregoing policies, customs and/or practices, Plaintiff has suffered and continues to suffer from emotional distress and damages, without fault or contribution of the Plaintiff.

THIRD CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

52. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 51, inclusive, as if fully set forth herein.

53. Upon information and belief, Defendants Miller and Martinez were supervisors who were assigned to supervise and control the actions of P.O. Basnight and P.O. Swinkunas.

54. As a result of Defendants Miller and Martinez's failure to properly supervise Defendants Basnight and Swinkunas, the Plaintiff has suffered and continues to suffer from emotional distress and damages, without fault and contribution of the Plaintiff.

FOURTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

55. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 54, inclusive, as if fully set forth herein.

56. Each of the individually-named Defendants had a duty to intervene when they saw illegal conduct taking place in connection with the Plaintiff's false arrest and malicious prosecution.

57. In particular, once the Plaintiff furnished proof that he properly purchased his vehicle, each of the Defendants had a duty to intervene and put a stop to the unconstitutional acts taking place.

58. The failure of each of these Defendants, who were acting in concert, to do so contravened the Plaintiff's constitutional rights and violated 42 U.S.C. § 1983. As a result, the Plaintiff suffered and continues to suffer emotional distress and damages, without fault and contribution of the Plaintiff.

59. In addition, the Defendants negligently and/or intentionally failed to intercede the within acts of extraordinary violence and intentional infliction of emotional distress by individually-named Defendants, who were acting in concert and within the scope of their employment.

60. As a result of the foregoing, the Plaintiff suffered and continues to suffer emotional distress and damages, without fault or contribution of the Plaintiff.

FIFTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision)

61. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 60, inclusive, as if fully set forth herein.

62. At all relevant times, the Defendant City of New York's NYPD had a duty screen applicants for hire, retention or discharge those employees who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard, or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological, racist, biased and/or physiological traits or characteristics unsuitable, unstable, or contraindicated for such employment.

63. At all relevant times, it was the duty of the Defendants City of New York and NYPD to sufficiently hire, train, retain personnel within the Police Academy and at the Command, Precinct and Patrol levels so as to sufficiently discipline, supervise, promulgate, and put into effect appropriate rules applicable to the duties, behavior and activities of their servants, agents, police officers, employees and/or personnel.

64. As a result of the Defendants' breach of duty, the Plaintiff was caused to suffer severe emotional distress and damage, without fault or contributing by the Plaintiff. As such, the Plaintiff has suffered and continues to suffer mental and emotional distress that are permanent in nature and duration.

SIXTH CAUSE OF ACTION
(False Arrest Under Federal Law and New York State Law)

65. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 64, inclusive, as if fully set forth herein.

66. Plaintiff was unlawfully placed in the custody of the NYPD and was wrongfully handcuffed, detained, confined and arrested without just cause or provocation.

67. As a result of the foregoing, the Plaintiff's rights secured under the United States Constitution, particularly the 4th, 5th, and 14th Amendments, 42 U.S.C. §§ 1983, 1985, 1986 and 1988, were violated by the Defendants P.O. Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their position as law enforcement officers.

SEVENTH CAUSE OF ACTION
(Malicious Prosecution)

68. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 67, inclusive, as if fully set forth herein.

69. The Defendants, its servants, agents, sergeants, detectives, lieutenants, captains and/or employees intentionally, wantonly, maliciously and falsely prosecuted the plaintiff for the criminal charges of which they accused the Plaintiff.

70. The charges brought against the Plaintiff by the Defendants were solely for the purpose of shielding and/or purportedly justifying the unconscionable arrest and unlawful treatment perpetuated upon the Plaintiff by the Defendants, all of which are in violation of Plaintiff's rights under 42 U.S.C. § 1983, et seq and New York law.

71. Through their actions the Defendants intentionally, wantonly and malicious prosecuted and/or caused, compelled, ordered, directed and/or permitted the malicious prosecution of the Plaintiff, as a common criminal, causing and/or compelling him to appear in public and in Court and falsely prosecuted the Plaintiff.

72. The charges brought against the Plaintiff were dismissed by the Criminal Court of the City of New York on or about January 28, 2016.

EIGHTH CAUSE OF ACTION
(Negligence Statutory Violations of New York Law)

73. Plaintiff hereby repeats and realleges each and every allegation in paragraphs 1 through 72, inclusive, as if fully set forth herein.

74. The Defendant City of New York's NYPD negligently failed to provide for the safety, security and protection of the Plaintiff by failing to properly investigate the claims of innocence by Plaintiff and take into account the evidence brought forward by Plaintiff.

75. In addition, the Defendant City of New York's NYPD negligently failed to prevent the within incidents of extraordinary and intentional infliction of emotional distress by Defendants Swinkunas, P.O. Basnight, P.O. Miller, P.O. Martinez, and "John and Jane Does," who were acting within the course and scope of their employment for the said defendants.

76. As a result of the foregoing, the plaintiff was injured, without fault or contribution of the Plaintiff.

77. By reason of the foregoing, the Plaintiff sustained emotional injuries and distress that have resulted in and will continue to result in severe pain and suffering, from the moment of this accident and continuing, which resulted from the injuries sustained by reason of the illegal,

wanton, malicious, callous, careless, reckless, intentional, and/or negligent conduct of the Defendants, and without any negligence on the part of the Plaintiff contributing thereto.

78. This action falls within one or more of the exceptions set forth in CPLR 1602.

79. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants owed the Plaintiff a non-delegable duty of care.

80. Pursuant to CPLR Section 1602(7), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard of the safety of others.

81. Pursuant to CPLR Section 1602(2)(iv), the Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said Defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the Plaintiff's damages.

82. Pursuant to CPLR Section 1602(11), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of Plaintiff's injuries.

WHEREFORE, Plaintiff prays that the Court enter judgment in his favor and against the Defendants, containing the following relief:

A. An award of damages in an amount to be determined at trial, but in any event in excess of the jurisdictional limit of any other court which might otherwise have jurisdiction over this matter, plus prejudgment interest, to compensate Plaintiff for his monetary and/or economic damages;

B. An award of damages in an amount to be determined at trial, but in any event in excess of the jurisdictional limit of any other court which might otherwise have jurisdiction over this matter, plus prejudgment interest, to compensate Plaintiffs for all his non-monetary and/or compensatory damages, including but not limited to, compensation for severe mental anguish and emotional distress, humiliation, embarrassment, stress and anxiety, loss of self-esteem, self-confidence and personal dignity, emotional pain and suffering and other physical and mental injuries;

C. An award of costs that Plaintiff has incurred in this action, as well as Plaintiff's reasonable attorneys' fees to the fullest extent permitted by law;

D. An award of punitive damages against the individually named Defendants in both their official and individual capacities; and

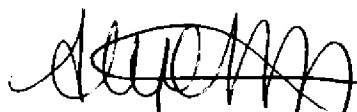
E. Such other and further relief as this Court may deem just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues of fact and damages.

Dated: New York, New York
February 21, 2018

Yours, etc.,

A handwritten signature in black ink, appearing to read 'Tracey L. Brown', is written over a horizontal line.

Tracey L. Brown, Esq.
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THE COCHRAN FIRM
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INDIVIDUAL VERIFICATION

State of New York)
)ss.:
County of New York)

DELANO O. ESANNASON, being duly sworn, deposes and says that I am the Plaintiff in the within proceeding; that I have read the foregoing VERIFIED AMENDED COMPLAINT and know the contents thereof; and that the same are true to my own knowledge.


DELANO O. ESANNASON

Sworn to before me this
21st day of February, 2018


Notary Public

RADHICA RAMLOCHAN
Notary Public, State of New York
Qualified in Queens County
No. 01RA6008574
Commission Expires 06/15/ 18